

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

**WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.**

**MICHAEL A. KELLY
STEPHANIE L QUINN**

PLAINTIFF WILLIAM ROGERS' MOTION TO SEVER DEFENDANT'S CROSS COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Plaintiff's Motion for a Separate Trial of the Cross-Complaint filed by Defendants TransitAmerica Services, Inc., Herzog Transit Services, Inc., and Peninsula Corridor Joint Powers Board against Cross-Defendant Balfour Beatty Infrastructure, Inc., pursuant to Code of Civil Procedure section 1048, subdivision (b), is **GRANTED IN PART**.

BACKGROUND

On August 25, 2022, Plaintiff William Rogers, an employee of Modern Railway Systems ("MRS"), was working on Caltrain property when he fell through timber planking on the Oregon Expressway Bridge onto Oregon Expressway below. This action, filed on July 20, 2023, arises from the injuries Rogers allegedly sustained in that accident.

The Complaint asserts three causes of action: (1) dangerous condition of public property; (2) negligence; and (3) loss of consortium against Defendants TransitAmerica Services, Inc., Herzog Transit Services, Inc., Peninsula Corridor Joint Powers Board ("JPB"), San Mateo County Transit District, and Does 1 through 125.

On October 9, 2025, the Court granted Defendants leave to file a Cross-Complaint against Balfour Beatty Infrastructure, Inc. ("BBI"). Caltrain had contracted with BBI in connection with the project to modernize Caltrain passenger rail service. BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI, which also allegedly provided services in connection with the project.

The Cross-Complaint asserts eight causes of action against BBI and Roe Cross-Defendants: (1) breach of contractual duty to defend; (2) declaratory relief regarding the duty to indemnify; (3) negligence; (4) breach of contract; (5) implied indemnity; (6) comparative equitable indemnity; (7) contribution; and (8) declaratory relief.

Plaintiffs move for a separate trial of the Complaint and Cross-Complaint pursuant to Code of Civil Procedure section 1048, subdivision (b), arguing that separate trials would promote expedition and economy, further the convenience of the parties, and avoid prejudice because the Complaint and Cross-Complaint raise materially different issues.

Defendants oppose. They contend that the central factual question common to both pleadings is who, if anyone, was responsible for the condition of the Oregon Expressway Bridge that allegedly caused Rogers's accident. Defendants propose that the Fourth Cause of Action for breach of contract, insofar as it concerns BBI's insurance-related contractual obligations, be tried after the underlying liability issues, while the negligence, equitable-indemnity, contribution, and related claims remain with the underlying action because they arise from the same accident and depend upon substantially overlapping evidence.

LEGAL STANDARD

Code of Civil Procedure section 1048, subdivision (b), provides that, in furtherance of convenience, to avoid prejudice, or when separate trials will promote expedition and economy, the Court may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or number of causes of action or issues.

Code of Civil Procedure section 598 similarly authorizes the Court, when the convenience of witnesses, the ends of justice, or the economy and efficiency of the litigation would be promoted, to order that the trial of one issue or part of an issue precede the trial of another.

"A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed absent an abuse of that discretion." (*Antelope Valley Groundwater Cases* (2020) 59 Cal.App.5th 241, 273.)

Although litigants and courts sometimes use the term "severance" in this context, Code of Civil Procedure section 1048 no longer authorizes severance of a civil action into separate actions; rather, it authorizes the Court to order separate trials of causes of action or issues within the same action. (*Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 738, fn. 3.)

DISCUSSION

Both sides discuss *Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266. There, plaintiffs simultaneously sued alleged tortfeasors for negligence and the tortfeasors' insurer for declaratory relief concerning insurance coverage. The Court of Appeal held that the trial court abused its discretion by refusing to order a separate trial of the insurance-related declaratory-relief claim because trying the insurer and the insured together would inject evidence of liability insurance into the negligence trial in a manner inconsistent with Evidence Code section 1155. (*Id.* at pp. 1270–1271.)

Omaha does not require complete separation of the Complaint and Cross-Complaint here. No insurer is a party to this action, and no bad-faith claim against an insurer is alleged. Moreover, Evidence Code section 1155 does not categorically prohibit all evidence concerning insurance; it provides that evidence of liability insurance is inadmissible when offered to prove negligence or other wrongdoing.

Nevertheless, *Omaha* illustrates the prejudice that may arise when insurance-coverage issues are unnecessarily placed before a jury deciding underlying tort liability. The Court therefore considers whether particular causes of action or issues should be tried separately rather than whether the entire Cross-Complaint should be separated from the underlying action.

Defendants contend that resolution of the principal factual issue presented by both pleadings—who was responsible for the condition of the Oregon Expressway Bridge that allegedly caused Rogers’s injuries—will require substantially the same witnesses, documents, experts, and factual determinations regardless of whether the Complaint and Cross-Complaint are tried together or separately. To that extent, the Court agrees.

Plaintiffs have not demonstrated that two entirely separate trials are necessary to avoid prejudice or would promote judicial economy. Completely separating the Cross-Complaint from the underlying action would likely require duplicative witness and expert testimony, repeated presentation of the same evidence concerning the accident and the condition of the bridge, and potentially inconsistent factual determinations concerning negligence and comparative fault.

Those considerations weigh against separately trying the Third Cause of Action for negligence, the Fifth Cause of Action for implied indemnity, the Sixth Cause of Action for comparative equitable indemnity, and the Seventh Cause of Action for contribution. Those claims substantially overlap with the factual questions concerning negligence, causation, and comparative responsibility presented by Plaintiffs’ Complaint.

The Court reaches a different conclusion as to the **First, Second, and Fourth Causes of Action** of the Cross-Complaint. The First Cause of Action concerns an alleged contractual duty to defend; the Second seeks declaratory relief concerning an alleged contractual duty to indemnify; and the Fourth alleges breach of contract. Those claims raise contractual issues—including the scope and interpretation of BBI’s contractual obligations, insurance-procurement and additional-insured provisions to the extent implicated by the pleadings, tenders of defense, defense costs, and related contractual defense and indemnity obligations—that are materially different from the jury’s determination of the underlying accident, negligence, causation, and comparative fault.

Trying those contractual issues during the underlying liability phase would create a substantial risk of unnecessary jury confusion and the introduction of insurance-related evidence having little or no relevance to the determination of tort liability. Conversely, resolving the underlying liability and comparative-fault issues first may narrow or eliminate issues relevant to the contractual claims.

Accordingly, separate phased proceedings will best promote efficiency and reduce the potential for prejudice without unnecessarily duplicating the evidence concerning the underlying accident.

Plaintiff’s motion is therefore **GRANTED IN PART**.

Pursuant to Code of Civil Procedure sections 1048, subdivision (b), and 598, trial shall proceed as follows:

Phase One: Trial shall proceed on Plaintiffs’ Complaint and on the Third, Fifth, Sixth, and Seventh Causes of Action of the Cross-Complaint, together with any other issues properly dependent upon the determination of negligence, causation, comparative fault, or allocation of responsibility for the underlying accident.

Phase Two: Following completion of Phase One, the Court shall separately try the First Cause of Action for breach of contractual duty to defend, the Second Cause of Action for declaratory relief regarding the duty to indemnify, and the Fourth Cause of Action for breach of contract.

The Court does not presently determine whether any particular issue within the Eighth Cause of Action for declaratory relief belongs in Phase One or Phase Two because the present record does not sufficiently establish

whether each aspect of that claim turns upon comparative fault and equitable indemnity, contractual interpretation, or both. The parties shall address the proper allocation of the Eighth Cause of Action in connection with the pretrial proceedings.

The Court also reserves determination of whether the issues in Phase Two will be tried to the same jury, a different jury, or the Court, as appropriate in light of the issues remaining after Phase One and the parties' respective jury-trial rights. (See Code Civ. Proc., § 598.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare and submit for the Court's signature a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law. The parties are reminded that San Mateo County Superior Court Local Rule 3.403(b)(iv) requires the prevailing party on a tentative ruling to prepare a proposed order **repeating verbatim the tentative ruling**. The proposed order shall be e-filed only; it shall not be emailed or mailed to the Court.

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

MICHAEL A. KELLY
STEPHANIE L QUINN

DEFENDANT BALFOUR BEATTY INFRASTRUCTURE, INC.'S DEMURRER TO TRANSITAMERICA SERVICES INC., HERZOG TRANSIT SERVICES, INC. AND PENINSULA CORRIDOR JOINT POWERS BORAD'S CROSS-COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Cross-Defendant Balfour Beatty Infrastructure, Inc.'s ("BBII") Demurrer to the October 7, 2025 Cross-Complaint is **SUSTAINED IN PART and OVERRULED IN PART**.

REQUEST FOR JUDICIAL NOTICE

BBII's Request for Judicial Notice ("RJN") is **GRANTED** as to the existence and filing of the Complaint and Cross-Complaint. (Evid. Code, § 452, subd. (d).) The Court does not take judicial notice of the truth of disputed factual allegations contained in those pleadings.

As to Exhibits 3 through 5—the court-filed declarations of Ashcon Minoiefar, William Motherway, and William Bogdan, together with their attachments—the Court takes judicial notice only of the fact that the documents were filed in this action. The Court does not take judicial notice of the truth of the factual assertions contained in the declarations, incident report, correspondence, photographs, or other attachments, nor does it adopt BBII's characterization or interpretation of those materials.

Although a court may judicially notice the existence of documents contained in a court file, judicial notice of a document does not establish the truth of disputed factual assertions contained within it. (*People v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374–375; see also *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1569.) A demurrer tests the legal sufficiency of the pleading and may not be converted into an evidentiary hearing through judicial notice of documents whose truth or proper interpretation is disputed. (*People v. H.A.S. Ins. Brokerage, supra*, at pp. 374–375.)

Accordingly, BBII's RJN as to Exhibits 3 through 5 is **GRANTED only as to the existence and filing of those documents and otherwise DENIED**.

BBII'S DEMURRER TO THE FIFTH THROUGH EIGHTH CAUSES OF ACTION

BBII demurs to the Fifth Cause of Action for implied indemnity, Sixth Cause of Action for comparative equitable indemnity, Seventh Cause of Action for contribution, and Eighth Cause of Action for declaratory